

Court No. - 39

Case :- WRIT - C No. - 9462 of 2017

Petitioner :- M/S Vikas Cool Industries Thru' Its Partner
H.M. Waseem

Respondent :- Madhyanchand Vidyut Vitran Nigam Ltd.
& 2 Others

Counsel for Petitioner :- Amit Saxena

Counsel for Respondent :- Rahul Pandey

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

The petitioner believes that the electric meter that was changed by the respondents on 7 April 2015 is defective as unusually high bills have been raised. It transpires that the petitioner has been repeatedly requesting the Authorities for testing the metre and for correcting the bills but no action has been taken.

Clause 5.6 of the Uttar Pradesh Electricity Supply Code, 2005¹, deals with cases of defective meters. It provides that the Licensee shall have the right to test any meter and related apparatus if there is a reasonable doubt about the accuracy of the meter and the consumer shall provide the Licensee necessary assistance in conduct of test. It also provides that a consumer may also request the Licensee to test the meter installed in his premises if he doubts that the meter readings are not commensurate with the consumption of electricity.

It is stated that when no action was taken on the complaints made with regard to the functioning of the meter, the petitioner stopped making payment of electricity bills as a result recovery citation has been issued.

Learned counsel for the petitioner has submitted that if the meter is tested and proper bills are raised, the petitioner may not be required to deposit any amount as excess amount has already been paid by him.

Sri Rahul Pandey, appearing for respondents has submitted that the petitioner on his own cannot stop paying the electricity bills and, therefore, the respondents were justified in issuing the recovery citation and in disconnecting the power supply.

We have considered the submissions advanced by learned counsel for the parties.

Clause 5.6 of the Code provides for checking of defective meters. It is open to the petitioner to move the Authority in accordance with the provisions of Clause 5.6 of the Code. The respondents shall take a decision and, if necessary, issue a fresh bill.

However, as the power connection has been disconnected and a citation has been issued for recovery of Rs. 8,45,017/- + other charges, it is provided that if the petitioner deposits an amount of Rs. 4 lacs before the respondents within a period of ten days from today and submits an application as provided under Clause 5.6 of the Code for testing the defective meter, the respondents shall restore the power supply and take a decision in accordance with law. No coercive action shall, thereafter, be taken against the petitioner for the recovery of the balance amount. If the petitioner fails to deposit the aforesaid amount, the protection granted by the Court shall stand withdrawn.

The writ petition is disposed of with the said directions.

Order Date :- 2.3.2017

praveen.

(Dilip Gupta,J.)

(Siddhartha Varma,J.)